Monday, November 18, 2024

Committee Reports

CMA Board Meeting

Coolfont Mountainside Association

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting
November 18, 2024, 7:00pm
AGENDA

I. Roll Call – Proof of Quorum

II. Approval of Minutes
a. August 17, 2024
b. October 26, 2024

III. Reports of Officers and Directors
c. President's Report
d. Vice President's Report
e. Treasurer's Report
    i. Financial Update
    ii. WVPSC Tariff Review – Board Approval of Settlement Offer from the PSC Staff for Tariff Case No 24-0457-WS-19A
f. Directors' Reports

IV. Operations Manager Report, Cathy Levey
a. Old Business
    i. Water
    ii. Sewer
    iii. Septic Maintenance Policy (based on gallons) – Status Update
    iv. Septic Survey – Status Update
    v. WSPSD Contract Renegotiation (Cindy Kelleher)
b. New Business
    vi. Water
    vii. Sewer
c. Project List
d. W&S Funding – Cindy Kelleher

V. Owner Forum

VI. Executive Session (held prior to open session)
a. Delinquency Report

VII. Adjournment

Next Meeting – December 16th, 2024, 7:00pm

Coolfont Mountainside Association – Water & Sewer
Board of Directors Meeting – November 18, 2024
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 10/31/24 are attached and cover 83.3% of the budget year. Expenses are running just slightly over budget at 87.7%.

Capital Improvement and Repair & Replacement Funds are held in a separate account from the operating account.

Accounts

2024 Q3 Billing

- Invoices were sent the first week of September.
- One account still unpaid as of 11/5/24
- Late fees applied and invoice mailed to owner.

NWRA Loan

- Proceeds received and first payment sent on November 1, 2024 ($901.40)
- Sent ACH information for direct debit for loan payments starting December 1, 2024.

Monthly Updates

Updates include details of attached reports as of the end of the previous month.

- Funding from CMA of $4,166.67/month is transferred into W&S each month for 2024.
- With the application of interim rates by the PSC, we have suspended additional contributions from CMA to CMAWS.

December/January:

- Set up new 2024 budget in QuickBooks. Still working to close out 2023.
- The mileage rate increased from 65.5 cents/mile to 67 cents per mile (based on IRS business mileage rate).

January

- 525 Sewer System Supplies running slightly over budget due to purchase of replacement pipe for wetlands.

February

- Income is only at 3.8% as first billing of the year isn't until March (residual December payments received in Jan/Feb).

March

- 415 Water System Labor includes 4 months of payments to WSPSD.
- 446 Chemical & Testing Sewer includes Pace testing of $275 per quarter, this will be over budget for the year.
- 515 Sewer System Labor includes 4 months of payments to WSPSD.
- 625 Mileage includes two trips to Lab for water safety testing after repairs.

April

- No updates. All line items are within budget parameters.

May

- No updates. All line items are within budget parameters.

June

- One online payment was rejected. The owner was contacted. Owner paid full invoice plus the $10 rejection fee.

July

- Interim tariff rates in place. We have suspended transfers from CMA.
- 725 Telephone expense running higher than usual with WS office phone and connectivity. Will adjust 2025 budget accordingly.
- 606 Payment processing fees higher than budget as more customers are paying online. Will adjust 2025 budget accordingly.
- Expect invoices for customer sewer line extension in the next month. We will reconcile invoices with customer deposit and bill/refund as appropriate.
- 2025 WS Operations Manager contract completed.

August/September

- Customer Sewer Extension project completed. Invoices reconciled and owner refunded extra deposit funds.
- 517 Sewer System Labor over budget due to expenses of Sewer Extension, offset by 340 Income Other.
- 446 Chemicals and Testing Sewer increase due to the increase in Pace Labs charges for required quarterly testing.

October

- 420 Water System Labor Other nearly at budget. Notified Operations Manager that Fund Accounts are available for use, if needed, for additional water system repairs.

PSC Tariff Review

- The Water/Sewer Committee is working to submit paperwork to PSC to initiate a Tariff Review for water and sewer. We are planning to discuss several topics with the PSC, including – but not limited to – tiered rates, reduced minimum charges, and fees for mailed invoices.
- Board approved motion to move forward with request on 1/13/24.

March

- Contacted PSC in mid-March about requirements for emergency rate increase to cover infrastructure project funding. PSC requested more information on utility and planned projects. Information provided.

April

- Call with PSC 4/9/24. CMA must file the Annual Water/Sewer Reports with PSC prior to requesting emergency rate increase.
- Requested BTM CPA to complete reports by 05/31/24.

May

- Draft reports received and comments returned to BTM CPA on 5/6/24. Waiting final review then submission to PSC before sending request for emergency rate increase.
- Filing sent to PSC in late May. Received confirmation of receipt and Case No. for Water/Sewer tariff reviews. Schedule notes staff report due in September and ALJ finalization in January 2025. Not quite the accelerated schedule we had hoped for.
- Responded to BTM CPA who received questions from PSC on Annual Reports; concerning reserve funds.

June

- PSC issued interim rates which will be used for the September billing. Notice posted in local paper per requirements. Owners notified by email. No email responses received.
- PSC Analyst, James Riley, will be on site at BTM CPA July 17-19 reviewing financials. The treasurer will be there July 18-19 to assist as needed.
- PSC Staff recommendation for rates due in September.
- CMA to sign interim rate tariffs and return to PSC.

July

- Interim tariffs signed, returned to PSC, and we received PSC stamped copies for our records.
- Copy of 2025 WS OpsMgr contract sent to PSC rep, James Riley. Have not received confirmation of receipt yet.
- Working to get information on WSPSD estimate for 2025 so PSC can take that cost into account on rate review (Steve, have we contacted WSPSD about this yet?)
- Met with PSC rep at BTM CPA. Provided information on questions about a few invoices.

August/September

- Received PSC Staff Recommendation on Friday, Sept 13, 2024.
- Submitted request for extension to respond to October 17, 2024. Request approved by PSC.
- Working on Response from CMA to Staff Recommendation.
- Owners requested at the annual meeting sample language and information on where to submit comments to the PSC in support of CMA Response. Working on language to send to owners.

October

- Sent owners information on filing comments and status of case.
- Six owner comments filed (as of 10/31)
- Received PSC Staff offer of settlement on 10/30/24. Board and WS Committee are reviewing terms and will send response to PSC. No deadline provided by PSC.
- PSC Staff requested extension to 11/15/24 to File formal response to CMA. PSC granted extension.

Water Committee Report for November 2024 Board Meeting

The contract with WSPSD for the CMA Water System operations and management is currently under review by the CMA W/S Committee. A meeting was held on 10/28/24 with Scott Crunkleton (general manager) and Monty Kerns (chief operator) of WSPSD and members of the CMA Water and Sewer Committee, Cindy Kelleher and Cathy Levey, as well as the CMA Board Liaison for Water and Sewer, Valerie Creason, for an initial discussion. Ongoing meetings of the CMA Water and Sewer Committee produced a suggested task breakdown which has been sent to WSPSD for their review and comment. We await a response.

After a meeting of the Water and Sewer Committee to review the offer from the PSC following the tariff review, Dawne Holz sent a letter on behalf of CMA to the PSC approving the settlement offer of 10/30/24. We are currently awaiting a response from the PSC as Dawne continues to keep the board and w/s committee informed of any updates or requests from the PSC. The new w/s rates could go into effect with the December quarterly billing period.

Repairs to the water system on 11/15/24 proved to be several small leaks rather than one isolated leak. Repairs were carried out to tighten leaking couplers without requiring the opening of any water lines and a decision was made by the operations manager not to pursue further repairs due to the size of the remaining leaks and the cost concern. Regular monitoring of any small leaks will be ongoing. During the excavation and repair process, a leak was also discovered at one of the homes, the homeowner was notified, and the leak was resolved.

We are still awaiting a third estimate for the cleaning and refurbishing of the reservoirs and, in the meantime, Lucas Andrews of Poly Coating Solutions LLC, who provided us with an estimate of $149, 075.00, has been highly recommended by WSPSD.

Wastewater Committee Report for November 2024 CMA Board Meeting

John Disanto, of IMS, arrived onsite on 11/12/24 to meet with Brian Bailey of the DEP to review his action plan for the replacement of the lagoon liner. John also met with Mike Kanehl, DEP inspector, and Scott Crunkleton, of WSPSD, to assess the meadow for land application. Despite an initial optimism on behalf of the land application approach, the request was denied due to the slope of the meadow. John has submitted a revised action plan, which has been approved by Brian Bailey. An approval letter signed by Brian was received on 11/15/24 and has been submitted to the CMA Board for their review via email.

John Disanto has set up a submersible pump, floating in the lagoon, attached to a ¾" hose, emptying into the chamber that leads to the wetlands. The pump is set to a limit of no more than 15,000 gallons a day emptying into the wetlands towards the goal of removing nearly all the grey water from the lagoon. Upon John's return on or around 12/2, he will further empty the effluent in the lagoon into his 15,000-gallon basin currently onsite and begin sludge removal by way of a pump truck to WSPSD treatment facility.

All homes due for septic tanks to be pumped in 2024 are in compliance and the 2025 septic pumping schedule begins in late January of next year.

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a. August 17, 2024
b. October 26, 2024

III. Reports of Officers and Directors
a. President's Report
b. Vice President's Report
c. Treasurer's Report
d. Directors' Reports

IV. Site Manager Report, Stephanie Rebant, MHRE
a. Approval of Snowplow Contract (Casey Pentoney – same price as last year)
b. Approval of Ditch Cleaning for an amount not to exceed $5,500 +tax.
    i. Dennis Schafer, GHS Excavating will be doing the ditch cleaning.

V. Committee Reports & Chairs

a.	Communications	Dawne Holz	Previously distributed
b.	DACC	Gary Farmer	Previously distributed
c.	Firewise	Mark Johnson	No Update Provided
d.	Neighborhood Watch	Gary Farmer	Acknowledged No Update
e.	Recreation	Chris Peabody	Acknowledged No Update
f.	Social	Jack Wennersten	No Update Provided
g.	Welcome	Rosemary Bigelow	Acknowledged No Update

VI. Task Force Reports & Chairs

a.	Barn	Dave Creason	Acknowledged No Update
b.	Sports Courts	Chris Peabody	Waiting on Funding
c.	Bus. Use of Property	Tom Holz	Waiting on Board

VII. New Business
a. Recommendation for $50k CD
b. Request for addition of Stop Signs
c. Bylaws Amendment Task Force
    - Project Charter – Board Approval; Task Force Chair; Board Liaison; 4 Members
d. CMA Policy Resolutions
    - Road Maintenance Policy – Draft created – Pending Board review and edits

VIII. Old Business
a. Placards
b. Online Payment Processing Fees, Recommendation from Finance Committee (See Finance Committee Minutes)
c. Reserve Study Update
d. Update DACC Charter
e. CMA Policy Resolutions
    - Noise Policy – Draft created – Pending Board review and edits

Next Meeting – December 16th, 2024, 7:00pm

- Short Term Rental Policy – Draft in progress
- Schedule of Fines, Fees, and Charges – Draft in progress
- Enforcement – Draft in progress

f. Project List (Office painting, Office floor, Pool Fence, etc.)

IX. Owners Forum

X. Executive Session (held prior to open session)

a. 2021 Corporate Transparency Act – Dept. of the Treasury's Financial Crimes Enforcement Network (FinCEN)
b. Delinquency Report
c. Violations/Legal

XI. Adjournment

Coolfont Mountainside Association
Board of Directors Meeting – November 18, 2024
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 10/31/24 are attached and cover 83.3% of the 2024 budget year. Expenses are about 88.6% – slightly over budget. (Expenses include WS payroll, which is reimbursed each quarter from CMAWS.)

Meetings

There was a Finance Committee meeting on Nov 6 where we discussed online payment processing fees. The Committee is looking into the online payment fees at the request of two owners. We are providing a recommendation for the Board this board meeting. (Separate report).

Delinquent Accounts

There are no unpaid assessment accounts. The last was paid on 7/7/24.

Updates

Updates include details of attached reports as of the end of the previous month.

December/January

- Set up new 2024 budget in QuickBooks. Still working to close out 2023.
- Finance Charge rate (interest rate) updated to 11.5% for 2024 (Prime 8.5% + 3%)
- The mileage rate increased from 65.5 cents/mile to 67 cents per mile (CMA is based on IRS business mileage rate). Updated Neighborhood Watch mileage spreadsheet with new rate.
- Invoices for 2024 Annual Assessments were sent out on 1/5/24. About 27% of owners have paid to date. Reminders will go out on/about 1/25/24.

January

- 540 Snow Removal is over budget due to several storms and the addition of chemical treatment of roadways.
- 762 Payment Processing fees are slightly over budget. More owners took advantage of online payments this year. Also, the majority of those fees are realized in January, which slightly skews the overall expenses for the first several months.
- 66000 Payroll Expenses. Reminder that these payroll expenses are shown on the CMA budget but are reimbursed by CMAWS at the end of each quarter.

February

- 381 Misc Income is from two mailbox fees paid.
- Expenses overages are still due to payment processing fees and snow removal.

March

- 670 Barn Maintenance includes costs to mitigate roof leaks, alarm service, and secure building.
- 550 Storm Water Maintenance includes ditch cleaning from late 2023, billed in 2024.

April

- 850/855 Insurance premiums came in slightly higher than budgeted (overall about $300).

May

- Pool expenses have started coming in. June water bill and propane refill have not been posted yet.

June

- The 18-month CD will renew on 8/8/24 (CD 112730). Next maturity is 2/8/26.
- Transfers to CMAWS have been suspended with the application of interim water/sewer rates.

July

- No significant updates in expenses.

August/September

- Last invoices for pool season are trickling in, still some payroll expenses to post and closing costs.
- 560 Forest Maintenance is nearly expended. Addressing only emergency work.

October

- Reviewed all current CD investments with bank representative. Updated QuickBooks with current terms and maturity dates.
- **Recommend we invest another $50K from Reserves Savings account in an 18-month CD – as we have no significant Reserve expenditures in the short term.**
- 530 Road Supplies is over budget due to significant increase in cost of gravel for roads.
- 570 Grounds Maintenance is over budget due to mowing through all of September.

CMA Finance Committee

Meeting Minutes 11/6/24 via Zoom, 11am

Meeting started at 11:05 am

Attendance

Dawne Holz, Treasurer/Chair, Dave Creason, Valerie Creason, Tom Holz, Ian Joseph, Cindy Kelleher (joined at 11:12, disconnected 11:40am)

Absent: Rosemary Bigelow, Tim Flanagan

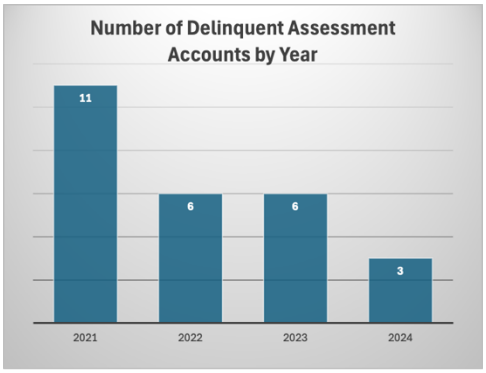
Credit Card Processing Fees

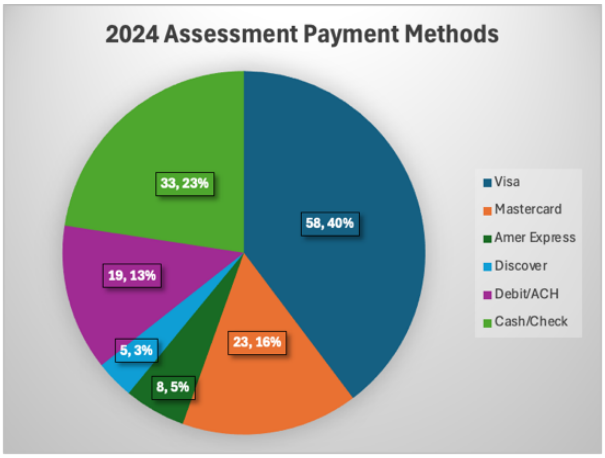
Issue: Two owners expressed concern over the budgeted expenses for online payment fees and have asked the board to investigate ways to reduce Payment Processing Fees for accepting online payment via credit/debit cards and ACH. The board would like a recommendation from the Finance Committee.

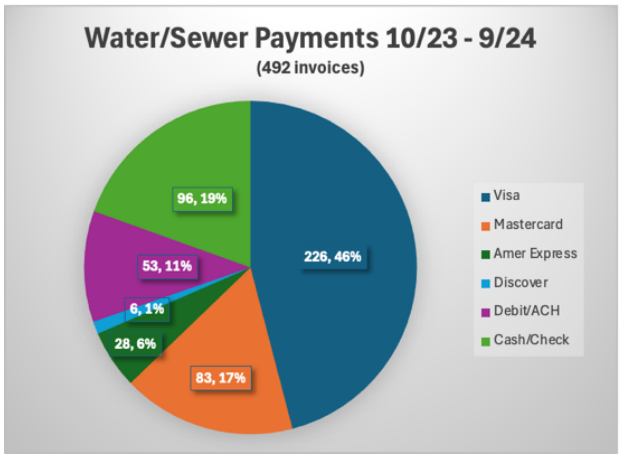
Members reviewed information in emails from Dawne Holz (9/30/24), Ian Joseph (10/3/24), and Rosemary Bigelow (10/30/24) sent to group prior to the meeting.

Data Reviewed

- Online payments instituted in December 2020.
- Reduction in delinquent assessment accounts: 11 in 2021, 6 in 2022, 6 in 2023, and 3 in 2024 (number of unpaid accounts as of 2/15 each year).
- 64% of owners paid assessment by credit card.
- 70% of owners paid WS invoices by credit card.
- 13% of owners paid assessment by ACH/debit.
- 11% of owners paid WS invoices by ACH/debit.
- Credit card payments allow owners the option to pay over time (to their credit card company).







- Owners overwhelmingly approved annual budgets with Payment Processing Fees
    - 2023: $4,000; 2024: $4,100; 2025: $4,800
- Cash/check payments require BTM CPA staff hours to post payments, prepare deposits, deliver to bank, and manually post to QuickBooks. Also, there is more potential for errors in posting. Online payments post automatically to owner accounts.
- Online payments are automatically deposited to CMA checking accounts within days, garnering more interest income and making funds available sooner.

Options Discussed

Research/implement third party payment system

Paygration.com, a third-party company, processes QuickBooks online payments. Their system can add the processing fees to the invoice automatically if paying by credit card. However, this would require a reconfiguration of CMA's QuickBooks software and $35 per month application fee. CMA would need to coordinate closely with BTM CPA's IT staff to determine if this could even be implemented.

Accept only ACH payments

One owner suggested we just "turn off" the ability to pay by credit card and only accept ACH payments online. This would likely result in more payments by check to process; increasing the staff time and potential errors associated with posting payments, processing deposits, and collecting on bad checks. It could potentially increase the number of delinquent accounts, adding costs of collections. This could increase the cost of the contract with BTM CPA, resulting in little to no realized savings.

Continue with QuickBooks Payment Systems

Requires no changes in current system. Integrated with QuickBooks with no need for third-party software installs. Cost to owners is $32.88 per lot per year for 2025. This seems reasonable considering the efficiency of payment processing directly to owner accounts, reduced errors in posting, automatic deposits to CMA, and expedited access to funds. It requires less BTM CPA staff time (keeping contract costs in check).

Recommendation

In consideration of the data provided and the options discussed, the Finance Committee unanimously agreed to continue with QuickBooks Payment Systems.

The Finance Committee recommendation to the Board of Directors is to continue with the current online payment system as it presents the most efficient, streamlined, and overall cost-effective solution.

Email Spoofing

Issue: Board and BTM investigating issue with spoofing of two board members' Gmail accounts. Information is very preliminary, but Finance Committee members asked to pay close attention to email addresses to/from board members.

Meeting adjourned at 11:56 am

MOUNTAIN HOME REAL ESTATE, LLC
64 South Green Street
Berkeley Springs, WV 25411
Phone: (304) 258-0410

MONTHLY STATUS REPORT FOR October 2024
As of: 11/14/24

Questions / Discussion Points / Approval from CMA Board:

- Road Maintenance Plan Overview:

Phase 1: Ditch cleaning
Phase 2: List Priority culverts to be cleaned
Phase 3: Update community map with ditches and cultverts. Color coded system - red (address NOW), yellow (address next year), green (nothing needed at this time)
Phase 4: Gravel Road Plan
Phase 5: Blacktop Road Plan

Request approval for $1,360 / day + tax for up to 4 days = $5,440 + tax for ditch clearing so culverts can be assessed and prioritized

Sent Pentoney Brothers 2024-2025 snow removal contract (please see attachment)

Special thanks to Mark and Nancy Hafkin for hosting John Disanto

Request funds for tree clearing around gamecourts to reduce debris on courts

Address placards needed for emergency services to locate property:
I-4 / 13 Mountainside Loop
I-2 / 21 Mountainside Loop
H-4 / 155 Woodpecker Lane
P-8 / 149 Cardinal Lane
J-1 - address number is is very faded and difficult to reach

Tasks Completed:

- Normal site manager duties - upkeep of grounds, emergency tree removal response, upkeep and maintenance of facilities
  Leaf removal / leaf mulching (10/02, 10/18 and 11/04)

Pending Tasks:

- CMA Office has been painted, bathrooms are in the process of being painted
- Working on developing a short and long term road maintenance plan for CMA to implement on an annual basis. The site manager has been allocated $20,000 in reserve funding to make a recommendation to the board to maintain the gravel and paved roads, ditches, culverts and fix the pool road. Site manager is working GHS Excavation and Weaver Paving, an onsite assessment of the community was conducted. Also consulting Alan Truax for an estimate and overview.
- Scheduled CMA Office floor repair with Clark's $600 repair cost at the beginning of December (floor installer was injured)

General Overview:

- Working with Dennis Schaffer on a gravel road improvement plan with board guidance and Weaver Paving for blacktop estimate.
- Brian Yost and Eric Whited are maintaining recreation areas for leaf clean up
- Pump houses are cleaned monthly and checked weekly, with dry conditions pest treatment has been needed.
- Brian Yost maintains the community grounds mowing on a bi-weekely or as needed basis.
- Brian Yost, Victor Stevens, Eric Whited and Stephanie Rebant conduct several weekly community inspections - mark dead trees, check for trash and violations, leaf blow tennis courts, pool and office grounds, check barn.
- Provide support assistance for water and sewer operations or any committee request with board approval
- On a monthly basis Brian Yost conducts ditch cleaning, road grading, gravel redistribution, leaf blowing, cut back overgrowth for community road

COOLFONT MOUNTAINSIDE ASSOCIATION

COMMUNICATIONS COMMITTEE REPORT

BOARD OF DIRECTORS REPORT – NOVEMBER 18, 2024

Submitted by Dawne Holz *Information as of November 12, 2024*

SOCIAL MEDIA

Facebook: 107 members. Dawne Holz, Gina Baum, Admins.

Gina will review Facebook guidelines to determine if update is needed.

Google Group: 208 subscribers. Still have 5 subscribers who were bouncing GG emails. Sent emails and text messages. If no response, may need to call owners. Admins are Dawne Holz (F-1); Clare Miller (A-3); and Barbara Shulman (T-8).

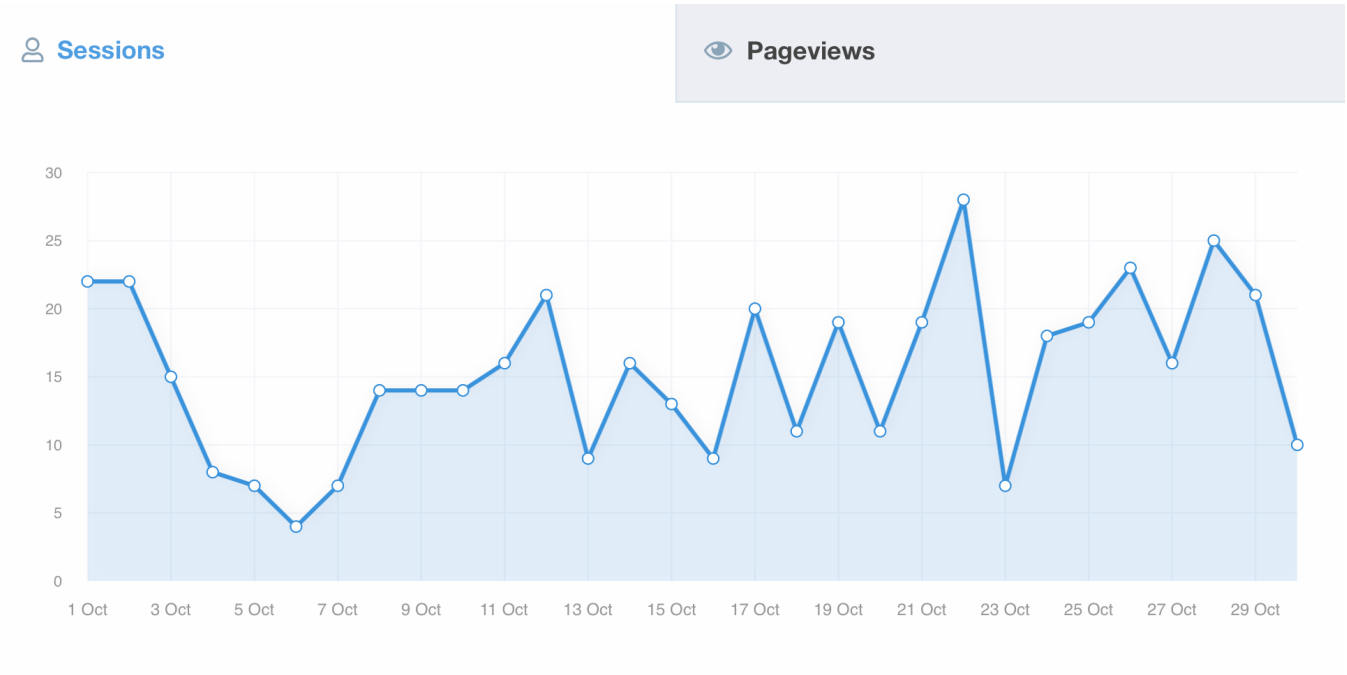
Clare and Barbara will review the GG User Policy from 2020 and suggest any updates.

WEBSITE

Admins: Dawne Holz, Erfan Zayer, Heidi Splane

We are doing final edits to updated website to put notices/posts on the homepage. The team discussed changes and processes at our meeting on 10/17/24.

TRAFFIC ANALYTICS



Top Posts/Pages

1.	Coolfont Mountainside Association – A mountainside community in Berkeley Springs, West Virginia	260
2.	Member Directory (secure) – Coolfont Mountainside Association	87
3.	Suggested Contractors – Coolfont Mountainside Association	49
4.	Water & Sewer – Coolfont Mountainside Association	47
5.	Association Documents – Coolfont Mountainside Association	45
6.	Amenities – Coolfont Mountainside Association	40
7.	About – Coolfont Mountainside Association	25
8.	Documents (secure) – Coolfont Mountainside Association	25
9.	Board of Directors – Coolfont Mountainside Association	20
10.	Committees – Coolfont Mountainside Association	17

CONTENT

- Posted October meeting reports.
- Posted November board meeting notice.
- Membership Directory updates: None
- Posted PSC Tariff Review Documents: Comments, Filings, etc

SOFTWARE UPDATES

- Updated Download Manager database.
- Plugins all on Auto Update.

From: **Gina Baum** gina@ginabaum.com
Subject: RE: CMA Communications Updates
Date: November 13, 2024 at 1:01 PM
To: Dawne Holz dawneholz@gmail.com

GB

HI Dawn
As far as a policy, the only thing I would recommend would be that they must be a Homeowner in CMA and agree to the rules that you already have in place on Facebook. I'm not sure what else would be needed.

From: Dawne Holz <dawneholz@gmail.com>
Sent: Monday, September 16, 2024 4:03 PM
To: Gina Baum <gina@ginabaum.com>
Subject: Re: CMA Communications Updates

Yes, and I think we just need a "policy" that the board can approve. Honestly, I took the FB over from a previous owner/volunteer. It doesn't seem like there was EVER any guidance on who can join, who/what can be posted, etc. I think we may want to put that on paper - so when you and I retire from this, the next person doesn't have to recreate the wheel…. Make sense to you?

Dawne

On Sep 16, 2024, at 4:00 PM, Gina Baum <gina@ginabaum.com> wrote:

Hi Dawne
I'm away this week at a conference, but I took a quick look and the questions and rules seem fine to me as written. Just to confirm, only owners are to be accepted on the group, correct? I have had requests from people who were considering the community, how should I respond to them? I don't just want to deny them without an explanation. Maybe I could update the rules that the group is only for new and current members?

From: Dawne Holz <dawneholz@gmail.com>
Sent: Monday, September 16, 2024 2:27 PM
To: Gina Baum <gina@ginabaum.com>
Subject: Re: CMA Communications Updates

Gina,

If you can take this on, here's a link to the membership questions, which might need updating:

https://www.facebook.com/groups/257606361406/membership_questions

And the Rules we have posted are fairly vague…. Needs help, right?

https://www.facebook.com/groups/257606361406/manage_rules

I appreciate any help you can lend on these…. I just can't seem to get to them as something else crops up.

Dawne

Date Received	Lot #	Name	Phone	Email	Description	Status	Entered by	Reviewed by	Date Reviewed	Completed by	Date Completed	Notes
01/31/2024	N-4	Jaron Ervin	443-603-5725	jaronervin@gmail.com	Install hot tub	Approved	Gary Farmer	Gary Farmer	02/02/2024	Gary Farmer	02/23/2024	Requested additional information receive and approved.
01/31/2024		Nick Trotta	513-633-0806	nicktrotta,a@gmail.com	Install pergola	Incomplete	Gary Farmer					Owner requested advice prior to submitting application.
04/01/2024	L-2	Elaine Geiger		Elaine.Geiger@uhc.com	Paint house exterior	Received	Gary Farmer	Gary Farmer	04/01/2024			Submitted color rejected. Requested resubmission with proper color.
04/05/2024		Mathew Ford	717-521-8260	ford.matthew@outlook.com	new house construction	Incomplete	Gary Farmer	Gary Farmer				Seeking advise on potential new house construction.
04/20/2024	J-3	Grace Cabungcal	202-919-9381	grace@bluemaple.co	Paint exteriot and install hot tub	Approved	Gary Farmer	Gary Farmer	04/23/2024	Gary Farmer	04/23/2024	04/20/2024 Returned incomplete application for additional information. 04/23/2024 Resubmitted with complete information.
04/30/2024	K-4	N. Shalom/J. Hittman	301-300-3018		Bathroom addition	Incomplete	Gary Farmer					Architect contact. Application to follow.
05/02/2024	P-6	Megan Moore	443-223-5098	evlmegan@comcast.net	exterior painting	Approved	Gary Farmer	Gary Farmer	05/02/2024	Gary Farmer	05/02/2024	Exterior paint color submitted and approved.
05/08/2024	C-3	Ian Joseph	202-215-8650	ijoseph99@gmail.com	Install underground propane tank and exterior color change	Approved	Gary Farmer	Gary Farmer	05/16/2024	Gary Farmer	05/16/2024	Requested new application to reflect requested changes.
06/17/2024	F-2	Valerie Creason	703-409-6509	valerie.creason@gmail.com	Display ADT security sign	Approved	Gary Farmer	Annmarie Stauder	06/21/2024	Gary Farmer	07/10/2024	
08/03/2024	E-3	Gina Baum	443-253-8322	gina@ginabaum.com	Revise exterior color to green	Approved	Gary Farmer	Gary Farmer	08/02/2024	Gary Farmer	08/05/2024	Exterior color submitted and approved.
08/14/2024	C-3	Ian Joseph	202-215-8650	ijoseph99@gmail.com	Install hot tub	Approved	Gary Farmer	Gary Farmer	08/28/2024	Gary Farmer	08/28/2024	Approved as submitted with evergreen tree screning.
08/30/2024	J-1	Siri Sophar	210-219-3135	sirilu@sbcglobal.net	Install exterior elevator	Approved	Gary Farmer	Gary Farmer	08/31/2024	Gary Farmer	08/31/2024	Approved as submitted.
09/23/2024	F-6	Richard Adjuo	301-300-9723	rich.indp@gmail.com	Install hot tub	Approved	Gary Farmer	Gary Farmer	10/02/2024	Gary Farmer	10/02/2024	Approved as submitted.
10/01/2024	K-4	N. Shalom/J. Hittman	301-300-3018	nshalom1@gmail.com	Add bathroom	In Review	Gary Farmer	Gary Farmer	10/08/2024			Replied to submitter with comments/questions on color, electrical, water, & sewer issues.
10/15/2024	E-3	Gina Baum	443-253-8322	gina@ginabaum.com	Add awning over door	Approved	Gary Farmer	Gary Farmer	10/17/2024	Gary Farmer	10/17/2024	Approved as submitted
10/27/2024	T-5	Gerda Yearwood	301-523-7119	gerda@verizon.net	Replace damaged decking	Approved	Gary Farmer	Gary Farmer	10/28/2024	Gary Farmer	10/28/2024	Approved as submitted.
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COOLFONT MOUNTAINSIDE ASSOCIATION
BYLAWS AMENDMENT TASK FORCE CHARTER

AUTHORITY

WHEREAS, Coolfont Mountainside Association is governed by the Bylaws of the Coolfont Mountainside Association, Inc., amended July 30, 2006;

WHEREAS, Article 16, Section 16.1 states, "These Bylaws may be amended at the Annual Meeting or at a Special Meeting called with proper notification for the purpose of amending Bylaws, by a vote of a majority of the Members who are voting in person or by proxy. Amendments shall become effective on the day after adoption. Proper notification shall include the wording of the changes proposed and no amendment to such proposed changes may be considered at the Meeting unless it is furnished in writing to the Secretary;"

WHEREAS Section 16.2 of the Bylaws states, "In the case of any conflict between the Articles and the Bylaws, the Articles shall control; and in case of any conflict between the Bylaws and the Covenants, the Covenants shall control. Any proposed amendment to the Articles or Covenants shall be accompanied by appropriate explanatory material, including a statement about any conforming changes needed in the Bylaws;"

WHEREAS, Article 11, Section 11.4 of the Bylaws states, "From time to time the Board may provide for appointment of ad hoc committees or task forces from among the Members and shall specify their authority and functions;" and

WHEREAS, the Association Bylaws require an Amendment to address outdated terms and requirements and to facilitate the use of current technologies and procedures.

NOW THEREFORE, be it resolved the CMA Board of Director's has formed a Bylaws Amendment Task Force and the following tasks and procedures for this Task Force adopted and implemented herewith.

RESPONSIBILITIES

This Task Force shall serve at the direction of and at the pleasure of the Board of Directors ("Board") of Coolfont Mountainside Association ("Association"). This Task Force shall have no authority to speak on behalf of the Board or to bind the Association financially or contractually, unless authorized by the Board.

The primary responsibilities of the Bylaws Amendment Task Force are to advise and assist the Board to:

1) Prepare and draft an amendment to the Bylaws of the Association (July 30, 2006 version);
2) Seek legal counsel review of proposed Bylaws Amendment through the Board or with specific Board authorization; and
3) Establish procedures for membership approval of proposed Bylaws Amendment in accordance with Article 16, Section 16.1 of the current Bylaws.

To meet these responsibilities, the Task Force will:

- Review:
  - The current Bylaws (as amended, July 30, 2006);
  - Previous volunteer recommendations for Bylaws updates since 2006; and
  - WV 31B and 31E applicable sections for guidance and/or potential inclusion of information.
- Make recommendations of needed changes in keeping with current terms and definitions, ensure they are written with clarity of meaning and intent.

- Interact with legal counsel, through the Board or with specific Board approval, to determine current definitions and compliance with WV statutes.
- Draft a comprehensive Amendment for Board and membership review and vote.
- Draft procedures to accomplish approval of the Bylaws Amendment.
- Organize and manage a Special Meeting of the membership for Amendment approval.
- Publish and record the Amended Bylaws in accordance with state and local requirements.

The Board may assign the Task Force additional tasks.

The Task Force will prepare a proposed budget and submit it to the Treasurer within than 30 days after approval of all members of the Task Force, and immediately inform the Treasurer of any increased financial needs. Any expenditures outside of its approved budget must be approved by the Board in advance.

MEMBERS

The Task Force shall consist of five (5) members, one of whom must be a current member of the Board of Directors. No more than one member from any one property may serve on the Task Force. Members may volunteer to serve on the Task Force and will be appointed by the Board.

ELIGIBILITY

Task Force members shall be CMA property owners in good standing, defined as the absence of any liens, privilege penalty, architectural or covenants violation, or pending legal action with the Coolfont Mountainside Association.

CHAIR

The Task Force will determine its Chair and Vice-Chair and notify the Board. Should the Chair or Vice-Chair be removed or become incapacitated, the Task Force will determine a replacement of their choosing. The Chair, Vice-Chair, or their designee, shall be responsible for chairing meetings of the Task Force.

The Chair shall ensure accurate minutes of meetings are recorded and maintained for reference. Minutes shall include the date, time, and place of meeting, members present, topics discussed, and all votes taken. Chair or Vice-Chair will submit updates to the Board Secretary for inclusion in each Board of Directors Meeting.

REMOVAL

The Board may remove any Task Force member, including the Chair, at any time. The Task Force Chair or the Task Force in whole may recommend to the Board the removal of Task Force members.

A Task Force member may be removed, upon written notice from the Task Force Chair, for good cause shown or failure to attend at least two-thirds of the Task Force meetings.

Any vacancies in the Task Force will be filled by board appointment before the next meeting of the Task Force.

MEETINGS

Task Force meetings shall be held at a mutually agreed upon date, time, and location of the Task Force members. Meetings may be in person or via teleconference (Zoom).

A majority of the Task Force members shall constitute a quorum. A majority vote of members while a quorum is present shall constitute a decision of the Task Force. Voting by proxy is not allowed.

No Task Force member, including the Chair, has more authority than any other member, except as stipulated elsewhere in this document.

COMMUNICATIONS

To ensure strong communications between the Board and the Task Force, the Task Force Chair, or a designee, will

- Attend each regularly scheduled CMA Board business meeting;
- Answer questions from the Board on the most recent report, actions, recommendations, tasks; and
- Request Board clarification or guidance as needed.

PROJECTED TIMELINE

The Task Force is projected to follow this approximate timeline. Acceleration/Extensions may be necessary.

Charter Approved	November 18, 2024
Members Appointed	December 6, 2024
Kick Off Meeting	December 15, 2025
Review of Previous work, Discussion Meeting	January 15, 2025
Legal Questions to Counsel, if any	February 1, 2025
Initial Draft of Amendment by Task Force	March 1, 2025
Initial Draft Legal Review (if any)	March 10, 2025
Initial Draft Regulation to Board (if any)	March 10, 2025
Final Board Review Complete (if any)	March 31, 2025
Draft Amendment to Owners for Comment (if any)	April 15, 2025
Special Meeting of Members for Approval	April 30, 2025
Recordation at County	May 15, 2025

DISSOLUTION

The Bylaw Amendment Task Force will cease to exist when the Bylaw Amendment has been duly approved by the membership and recorded with Morgan County Courthouse.

APPROVAL

This charter was approved by the CMA Board on November 18, 2024, and is noted in the meeting minutes.

Signature: _____ Date: _____

Steve Katz, CMA President

Board Approval: DATE
Effective Date: DATE

COOLFONT MOUNTAINSIDE ASSOCIATION
RESOLUTION 2024-05
ROAD MAINTENANCE POLICY

AUTHORITY

WHEREAS CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents;

WHEREAS the CMA Bylaws, Article 5, § 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations if the personal conduct of any member, guest, or tenant violates such the Board may suspend the rights of any such person and the responsible member;

WHEREAS the CMA Bylaws, Article 5, § 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member;

PURPOSE

WHEREAS CMA roads and accessways are privately maintained and funded by the association and not intended for use by other than CMA owners, tenants, and invited guests to CMA or private owner/tenant events on CMA common or private property;

WHEREAS CMA has sole responsibility for creation, grading, paving, snowplowing as deemed appropriate, and maintenance of all roads and accessways for vehicular traffic on the common properties of the association and, conversely no responsibility for creation, grading, paving, or maintenance of roads or driveways on private property;

WHEREAS to promote the peaceful enjoyment of all CMA properties and common lands, the Board wishes to establish rules, enforcement policies, and procedures in accordance with the CMA Covenants and Restrictions, Bylaws, and rules and regulations so that it may fairly and consistently enforce the governing documents and ensure the public health and safety of all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting the premises of the CMA owners;

WHEREAS, the Board of Directors believes that it is in the best interest of the Association to provide clarity to owners on the responsibility for maintenance and upkeep of CMA roadways; and

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SCOPE AND INTENT

WHEREAS it is the intent that this resolution be applicable to all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting the premises of the CMA owners.

This policy resolution No. 2024-05shall remain in effect until otherwise rescinded, modified, or amended by a majority of the Board of Directors and recorded in the Morgan County, WV Clerk's Office.

NOW, THEREFORE, IT IS HEREBY RESOLVED the Board adopts the following CMA Road Maintenance Policy.

DEFINITIONS

A. Roads

Those surfaces intended for vehicular traffic, named in the Morgan County E911 Turn-by-turn directions and/or recognized by the CMA Board in this or other CMA policy resolutions, and located on CMA common property (see Appendix A).

B. Accessways

Those surfaces intended for vehicular and personal traffic providing access to CMA amenities and infrastructure (see Appendix A).

C. Shared Accessways

Those surfaces intended for vehicular and personal traffic providing access to both CMA amenities or infrastructure and CMA owner private property within CMA and located on CMA common property.

D. Driveways

Those surfaces intended for vehicular and personal access solely to private property within CMA, notwithstanding they may lead to more than one home.

E. Paved surface

Those roads, accessways, and driveways surfaced with asphalt, concrete or other durable hard surface material and intended primarily for vehicular traffic.

F. Gravel surface

Those roads, accessways, and driveways surfaced with a mixture of dirt, gravel, gravel fines and similar materials other than asphalt, concrete or other durable hard surface material and intended primarily for vehicular traffic.

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SPECIFICATIONS

A. Access

CMA roads or accessways providing access solely to CMA infrastructure are intended for access on official CMA business, other uses are prohibited without CMA Board permission. Roads or accessways providing access to CMA infrastructure and amenities may be used by owners, tenants, and guests solely for amenity access; accessing CMA infrastructure is limited to official CMA utility business unless the CMA Board grants access.

B. Maintenance

CMA will fund and maintain only CMA roads, accessways, and those portions of shared accessways on CMA common property. CMA will not fund creation or maintenance of shared accessways on private property; except it may share funding, in part or in whole, of accessways or driveways providing access to both CMA amenities or CMA infrastructure and private property.

C. Maintenance Agreements

Any agreement between an owner(s) and CMA regarding shared creation or shared maintenance of shared accessways shall be documented and signed by all parties, stating the reason, anticipated length of the agreement, requirement for dissolution, and be recorded with Morgan County, WV.

CMA may agree to fund, in whole or in part, roads or accessways essential to the function of CMA infrastructure not located on CMA property. Any agreement between a non-CMA property owner and CMA shall be documented in an appropriate format, signed by all parties, and recorded with Morgan County, WV.

D. Private Properties

CMA has no responsibility for creation, grading, paving, snow plowing, or maintenance of roads or driveways on private property. CMA or its contractors could be open to legal action by owners for damage to private property or create a question of liability coverage should CMA contractors or the property owner be injured while maintaining private property.

E. Snow Plowing

CMA will provide snow plowing, in accordance with the snow plowing contract, on CMA roads, accessways, and those portions of shared accessways on CMA common property. See map, Appendix B. CMA will work with the snowplow contractor to ensure plowing of CMA roads does not create hazards or “berms” of snow at accessways, driveways, and private driveway entrances.

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ADDITIONAL INFORMATION

A. Maintenance Schedule

The CMA Site Manager shall develop and recommend to the Board a regularly recurring maintenance program of CMA roads broken into sections based on need, surface type lifetimes, and the Reserve Study recommendations. The program will be reviewed annually by the Site Manager and Board to ensure it is updated based on need. The CMA Board will ensure the approved program is addressed in the proposed annual CMA budget and, if appropriate, propose a special assessment or other means of funding the requirement.

B. Emergency Repairs

Emergency repairs created by weather or other events will be considered and implemented along with a special assessment or other funding approach and the program adjusted.

C. Damage to CMA Roads or Accessways

Where such emergent repairs and issues are caused, in the sole determination of the Board, by inappropriate actions on the part of an owner, all charges for repairs will be charged to the owner. Any such charges will be implemented along with standardized CMA timelines for notifications, requested hearings, and reconsiderations for fines and fees established by CMA.

ADDITIONAL INFORMATION

Appendix A contains a list of CMA Recognized Roads and Accessways.

Appendix B contains a map of the current CMA Roads, Accessways, Shared Accessways, and driveways.

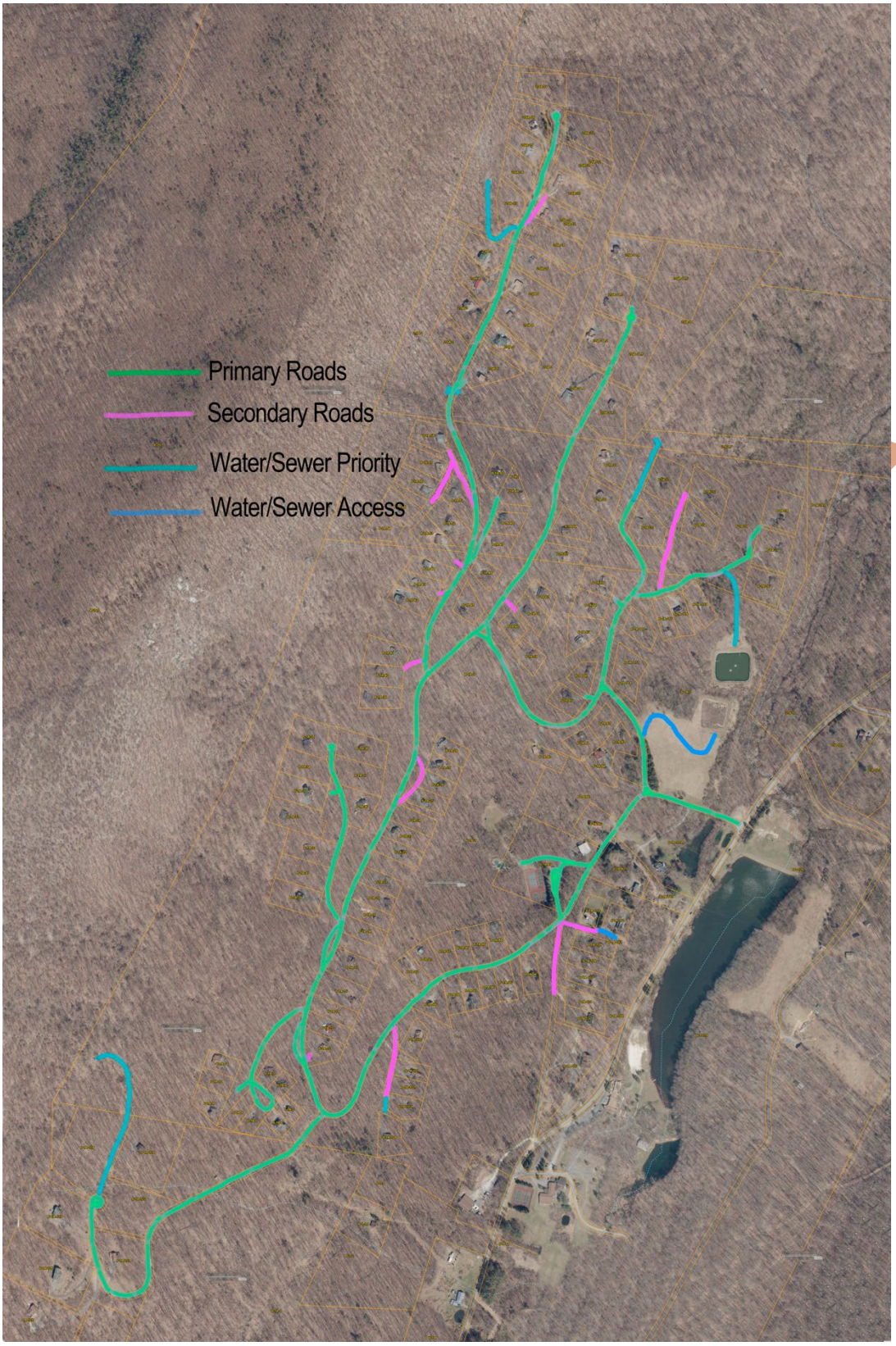
This information may be updated by the CMA Board by majority vote at any time. Any changes implemented require notification by the Board to all owners by inclusion in the Board Meeting Minutes at which the change was decided. Changes to Appendix A and B of this policy to be accomplished within 30 days of the Board decision.

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APPENDIX A: RECOGNIZED ROADS AND ACCESSWAYS

Road Name	Length	Surface	Notes
Bluebird Lane	472	Gravel	Road lengths from JOSM editor in OpenStreetMaps as of 2019-12-18 using ESRI/Morgan County Leaf-Off aerial photogrammetry from 2018. * Roads not listed in Morgan County E911 system as of 2019-12-18.
Bobcat Court	176	?	
Bobcat Drive	3,547	Asphalt	
Bobcat Lane	384	Gravel	
Bobcat Trail	246	Asphalt	
Bobcat Way	192	Gravel	
Buckwheat Court	92	Gravel	
Cardinal Court	458	Gravel	
Cardinal Lane	813	Gravel	
Daffodil Terrace	111	Gravel	
Dogwood Lane	1,402	Gravel	
Frog Hollow Way	547	Gravel	
Gopher Trail	73	Gravel	
Herbert Quick Drive	609	Asphalt	
Magpie Place	74	Gravel	
Mountainside Court	56	Gravel	
Mountainside Drive	78	Gravel	
Mountainside Lane	145	Gravel	
Mountainside Loop	372	Gravel	
Mountainside Road	7,840	Asphalt	
Muskrat Terrace	162	Gravel	
Rush-No-More Lane	83	Gravel	
Salmon Lane	2,376	Gravel	
Warbler's Way	436	Gravel	
Whippoorwill Court	95	Gravel	
Whippoorwill Way	1,021	Gravel	
Wintergreen Court	50	Gravel	
Wintergreen Way	2,146	Gravel	
Woodpecker Drive	1,079	Gravel	
Recreation Way*	541	Gravel	
Dogwood Court*	50	Gravel	
Office-Pool Road*	337	Gravel	
R Reservoir Road*	564	Dirt	
South Reservoir Road*	1,047	Mixed	
South Well Access Road*	949	Dirt	
Lagoon Access Road 1*	458	Dirt	
UV Treatment Access Road 2*	?		

APPENDIX B: MAP OF CMA ROADWAYS



COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2024-05 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held: DATE

Motion by: _____ Seconded by: _____

VOTE:

	YES	NO	ABSTAIN	ABSENT
_____ Steve Katz, President	_____	_____	_____	_____
_____ Norm Rosenberg, Vice President	_____	_____	_____	_____
_____ Dawne Holz, Treasurer	_____	_____	_____	_____
_____ Valerie Creason, Secretary	_____	_____	_____	_____
_____ Anna Connolly, Director	_____	_____	_____	_____
_____ Dave Creason, Director	_____	_____	_____	_____
_____ John Wennersten, Director	_____	_____	_____	_____

ATTEST:

_____ _____

Secretary Date

Resolution effective date: DATE

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